Ankit Garg And 3 Others vs State Of U.P. And Another on 11 December, 2024

Author: Manju Rani Chauhan

Bench: Manju Rani Chauhan

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HIGH COURT OF JUDICATURE AT ALLAHABAD



?Neutral Citation No. - 2024:AHC:194261

Court No. - 52


Case :- APPLICATION U/S 482 No. - 3088 of 2024


Applicant :- Ankit Garg And 3 Others

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Chetan Chatterjee,Syed Ali Murtaza

Counsel for Opposite Party :- Ankit Prakash,G.A.


Hon'ble Mrs. Manju Rani Chauhan,J.
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1. Heard Mr. Kavindra Dwivedi, Advocate holding brief of Mr. Chetan Chatterjee, learned counsel for the applicant, Mr. Ankit Prakash, learned counsel for opposite party no.2 as well as Mr. Mayank Awasthi, learned A.G.A. for the State and perused the record.

2. This application u/s 482 has been filed by the applicants with the following prayer :-

> "It is, therefore, most respectfully prayed that this Hon'ble Court may graciously be pleased to quash the charge sheet bearing Charge Sheet No. 264 of 2023 filed in Case Crime/F.I.R. No. 250 of 2022, Police Station Mahila Thana, Muzaffarnagar which

has been filed against applicant no. 1 namely Ankit Garg under Sections 498-A, 323, 504, 506, 313 of I.P.C., and 3/4 D.P. Act, applicant no. 2 namely Manoj Agarwal under section 498-A, 323, 504, 506, 354 of IPC and 3/4 D.P. Act and against applicant no. 3 and 4 namely Alka Agarwal and Akansha Garg under Sections 498-A, 323, 504, 506 of IPC, 3/4 DP Act and further set aside the consequential cognizance order dated 06.10.2023 passed in Criminal Case No. 33683 of 2023 titled State vs. Ankit Garg and others arising out of F.I.R./Case Crime No. 250 of 2022, Police Station Mahila Thana, Muzaffarnagar passed by the Court of Civil Judge (Junior Division) FTC-1 Muzaffarnagar.

And it is further prayed that, as an interim measure, the further proceedings of Criminal Case No. 33683 of 2023 titled State vs. Ankit Garg and others passed by the Court of Civil Judge (Junior Division) FTC-1 Muzaffarnagar pending before the Court of Civil Judge (Junior Division) FTC-1, Muzaffarnagar may be stayed during pendency of the present application before this Hon'ble Court."

3. On 15.02.2024, the following order was passed :-

"1. Heard Sri Syed Ali Murtaza and Sri Chetan Chatterjee, learned counsel for the applicants and Sri Gopal Chaturvedi, learned Senior Counsel assisted by Sri Amit Prakash, learned counsel for the opposite party no.2.

2. Learned counsel for the parties were encouraged to enter into a conciliation, it was found that both the parties are not ready to live together and there is a break down of marriage.

3. The only question is of compensation which was to be considered through conciliation. Learned counsel for both the parties have assisted the Court through their parties for conciliation. The opposite party no.2-wife and her father is present in Court.

4. The deliberations were made and at the end, a sum of Rs.25 lacs as permanent alimony was accepted by both the sides. Learned counsel for the applicant submits that he would not be in a position to pay the whole amount in one stroke. He seeks some time and fairly submits that the applicant is ready to deposit a sum of Rs.10 lacs as upfront amount within 15 days from today before the Registrar General of this Court.

5. In case, the amount of Rs.10 lacs is deposited by the applicant within 15 days before the Registrar General of this Court, the same shall be kept in a fixed deposit bearing interest in a nationalized bank and a receipt of the same shall be placed on record of this case.

6. Learned counsel for the applicant has also submitted that the remaining compromise amount of Rs.15 lacs would be paid within three months from today.

7. The aforesaid offer is acceptable to the opposite party no.2 subject to the deposit of Rs.10 lacs within 15 days.

8. Considering the fact that both the parties have amicably agreed to settle the dispute and they have decided to part their ways by mutual consent as well as permanent alimony by the applicant to the wife the aforesaid amount may be deposited by the applicant in terms of the aforesaid.

9. List on 12th March, 2024 as fresh.

10. Till the next date of listing, the proceedings pending before the court concerned shall be kept in abeyance."

4. On 12.03.2024, the following order was passed :-

"1. Heard learned counsel for the applicants, learned counsel for opposite party no. 2 and learned AGA for the State.

2. This application under Section 482 Cr.P.C. has been filed by applicants for quashing the charge sheet bearing charge sheet no.264 of 2023 filed in Case Crime/F.I.R. No.250 of 2022, P.S. Mahila Thana, Muzaffarnagar which has been filed against applicant no.1, namely, Ankit Garg under Sections 498-A, 323, 504, 506, 313 IPC and Section 3/4 D.P. Act, applicant no.2, namely, Manoj Agarwal under Sections 498-A, 323, 504, 506, 354 IPC and Section 3/4 D.P. Act and applicant nos.3 and 4, namely, Alka Agarwal and Akansha Garg under Sections 498-A, 323, 504, 506 IPC and Section 3/4 D.P. Act and setting aside the consequential cognizance order dated 6.10.2023 passed in Criminal Case No.33683 of 2023 (State Vs. Ankit Garg and others) arising out of F.I.R./Case Crime No.250 of 2022, P.S. Mahila Thana, Muzaffarnagar passed by the court of Civil Judge (Junior Division) FTC-1 Muzaffarnagar.

3. It is submitted by learned counsel for the applicants that in pursuance to order dated 15.2.2024. Applicants have deposited a sum of Rs.10,00,000/- before the Registrar General of this Court on 28.2.2024. A report in this report has been endorsed in the order sheet.

4. Learned counsel for the applicants submits that since the parties are ready to settle the dispute through mutual divorce on payment of a sum of Rs.25,00,000/- out of which Rs.10,00,000/- has already been deposited before this Court. The remaining amount would be deposited in three installments i.e. Rs.5,00,000/- each in the interval of every 15 days till the complete amount is paid.

5. Let the amount of Rs.5,00,000/- be paid within 15 days from today.

6. Parties shall file details of different pending cases, which are going on between the parties on the next date so that settlement process be completed.

7. List this case on 9th April, 2024 as fresh.

8. Since the first installment of compromise has already been deposited before this Court, till the next date of listing, no coercive measures shall be taken against applicants in aforesaid case.

9. In the meantime, parties shall draw a terms of settlement and shall submit before the Court. Parties shall also be set at liberty to apply for divorce by mutual consent, however, any such divorce petition is filed, the same shall not be finally decided unless complete amount of Rs.25,00,000/- is deposited before this Court."

5. On 09.04.2024, the following order was passed :-

"List has been revised. No one has appeared on behalf of opposite party no. 2.

Learned counsel for the applicant submits that in pursuance to the order dated 15.02.2024, amount of Rs. 20 lakh has been deposited before the Registrar General of this Court.

He seeks time to deposit the remaining amount.

List this case on 25th April 2024, as fresh.

Interim order granted earlier is extended till the next date of listing."

6. On 25.04.2024 , the following order was passed :-

"Initially when the matter was taken up learned counsels for the both the parties were present, however, the file has not come to this Court. Subsequently, the Registrar (Criminal) was called and was asked to explain why file has not been sent.

Registrar (Criminal) has given explanation as to why file has not come to the Court at time.

Since the file has come up after both the respective counsels have left the Court, let the matter be listed again on 06.05.2024 as fresh.

Interim order granted earlier to continue till the next date of listing."

7. On 06.05.2024, the following order was passed :-

> "1. Learned counsel for the applicants submits that as per the compromise arrived at between the parties by order dated 15.02.2024, a sum of Rs. 25 lakh has been deposited before this Court.
>
> 2. Since the permanent alimony has already been deposited before this Court, the parties are hereby directed to file an application for divorce within 15 days from today on mutual consent.
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> 3. Sri Saurabh Srivastava, advocate holding brief of Sri Ankit Prakash, counsel for opposite party no. 2 submits that his client will cooperate in filing of the application for divorce on mutual consent.
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> 4. In view thereof, in the event, application for divorce on mutual consent is filed, details of the amount deposited before this Court, as permanent alimony, shall also be disclosed in the aforesaid divorce application and the court concerned shall take up the matter on priority basis and decide the same at the earliest.
>
> 5. List this case on 27th May 2024, as fresh.
>
> 6. Interim order granted earlier is extended till the next date of listing."

8. On 27.05.2024 , the following order was passed :-

> "1. Learned counsel for the applicants submits that the divorce petition has been filed before the court concerned in view of the compromise entered into before this Court. A sum of Rs. 25 lakhs has already been deposited as per the compromise. It is further submitted by learned counsel for the applicants that since the court was vacant on the date concerned, the divorce petition has been fixed in November, 2024. Learned counsel for the applicants submits that divorce petition may be prepone in view of the compromise between the parties.
>
> 2. The parties are hereby set at liberty to file an application for preponement of the date fixed in the divorce petition in terms of the compromise.
>
> 3. In case any such application is filed, the Family Court concerned shall prepone the date and shall pass an order on the divorce petition in terms of the compromise entered into before this Court.
>
> 4. List this case on 29.7.2024 in top ten cases.
>
> 5. Interim order granted earlier is extended till the next date of listing."

9. In compliance of the aforesaid orders passed by this Court, a joint affidavit has been filed in which it has been stated that Rs.25,00,000/- have already been deposited by the applicants before the learned Registrar General, High Court of Judicature at Allahabad. A divorce petition under Section 13-B of Hindu Marriage Act has been filed and the same has been allowed on 09.08.2024 and divorce decree dated 22.08.2024 has been passed. The relevant excerpt of the joint affidavit dated 23.10.2024 is being referred here as under :-

> "5. That in compliance of the order dated 15.02.2024 of this Hon'ble Court, the Applicants have deposited Rs.25,00,000/- lakh before the Registrar General, High Court, Allahabad.
>
> 6. That after the deposit of the amount both the Applicant no. 1 and Opposite party no. 2 appeared before the trial court and filed a application for mutual divorce u/s 13 B of the Hindu Marriage Act, and the same was allowed vide order dated 09.08.2024 and divorce decree dated 22.08.2024 has been passed. A photocopy of the Order dated 09.08.2024 and divorce decree dated 22.08.2024 are being attached herewith and marked as Annexure No.Il to this Affidavit."

10. The parties have also stated that they will withdraw the cases which are pending against each other by moving an application in view of the understanding between the parties. Details of the pending cases are as follows:-

> "i. FIR no. 250 of 2022 Under section 498A, 323, 354, 504, 506, 313 of IPC and Section 3/4 of DP Act, Police Station Mahila Thana, Muzaffarnagar.
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> ii. Case no. 1437 of 2022 titled as Sonakshi Bansal vs Ankit Garg pending in the Court of Principal Judge Family Court, Muzaffarnagar (Under Section 125 of Cr.P.C.).
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> iii. Case no. 343 of 2023 under section 12, 18, 19, 20, 22 and 24 of Domestic Violence Act titled as Smt. Sonakshi Bansal vs. Ankit Garg and others.
>
> iv. Criminal Appeal no. 3331 of 2023 titled as Ankit Garg vs State of U.P. & Other Pending Before Hon'ble High Court of Judicature at Allahabad.
>
> v. Criminal Appeal no. 1305 of 2023 titled as Ankit Garg vs State of U.P. & Other Pending Before Hon'ble High Court of Judicature at Allahabad.
>
> vi. Case no. 89 of 2023 under section 13(1)(a) of Hindu Marriage Act titled as Sonakshi Bansal vs Ankit Garg pending in the Court of Principal Judge Family Court, Muzaffarnagar and Misc. Case no. 13 of 2023 under section 7(1) of Hindu Marriage Act.
>
> vii. Criminal Misc. Writ Petition no. 15690 of 2022 titled as Ankit Garg vs State of U.P. & Other Pending Before Hon'ble High Court of Judicature at Allahabad.

viii. Criminal Revision no. 45 of 2024 pending in court no. 4, 2nd Additional District Judge, Dehradun against final report submitted after investigation in FIR no. 754 of 2022 Under section 420 of IPC and Police Station Patel Nagar, Dehradun tilted as Ankit Garg vs Sonakshi Bansal."

11. Learned counsel for the applicants submits that since the matter between the parties has been settled and permanent alimony of Rs.25,00,000/- has already been deposited before the learned Registrar General, High Court of Judicature at Allahabad, therefore, learned counsels for the parties state that nothing remains between the parties and continuance of proceedings against the applicants would be a futile exercise and is sheer wastage of time of the Court and will be abuse of process of law, therefore, the entire proceedings of the aforesaid criminal case may be quashed by this Court.

12. An application has been moved by learned counsel for the opposite party no.2 requesting for release of the amount of permanent alimony deposited before the learned Registrar General, High Court of Judicature at Allahabad in favour of opposite party no.2 having savings bank account no.50100323552452 with HDFC Bank Ltd., 171 Saga Mall, South Civil Lines, Court Road, Muzaffarnagar, 251001. The aforesaid account details of opposite party no.2 are mentioned in the cancelled cheque annexed on page no.27 of the affidavit filed by the learned counsel for the opposite party no.2 on 24.10.2024.

13. Learned A.G.A. for the State also accepts that the parties have entered into a compromise and they have no objection if the proceedings in the aforesaid case are quashed.

14. This Court is not unmindful of the following judgements of the Apex Court:

(i). B.S. Joshi and others Vs. State of Haryana and Another; (2003)4 SCC 675,

(ii). Nikhil Merchant Vs. Central Bureau of Investigation; (2008) 9 SCC 677,

(iii). Manoj Sharma Vs. State and Others; (2008) 16 SCC 1,

(iv). Gian Singh Vs. State of Punjab; (2012); 10 SCC 303,

(v). Narindra Singh and others Vs. State of Punjab; (2014) 6 SCC 466,

15. In the aforesaid judgments, the Apex Court has categorically held that compromise can be made between the parties even in respect of certain cognizable and non compoundable offences. Reference may also be made to the decision given by this Court in Shaifullah and Others Vs. State of U.P. & Another; 2013 (83) ACC 278 and Pramod & Another Vs. State of U.P. & Another (Application U/S 482 No.12174 of 2020, decided on 23rd February, 2021) and Daxaben Vs. State of Gujarat, reported in 2022 SCC Online SC 936 in which the law expounded by the Apex court in the aforesaid cases has been explained in detail.

16. Considering the facts and circumstances of the case, as noted herein above, and also the submissions made by the counsel for the parties, the court is of the considered opinion that no useful purpose shall be served by prolonging the proceedings of the above mentioned criminal case as the parties have already settled their dispute.

17. Accordingly, the charge sheet bearing Charge Sheet No. 264 of 2023 filed in Case Crime/F.I.R. No. 250 of 2022, Police Station Mahila Thana, Muzaffarnagar which has been filed against applicant no. 1 namely Ankit Garg under Sections 498-A, 323, 504, 506, 313 of I.P.C., and 3/4 D.P. Act, applicant no. 2 namely Manoj Agarwal under section 498-A, 323, 504, 506, 354 of IPC and 3/4 D.P. Act and against applicant no. 3 and 4 namely Alka Agarwal and Akansha Garg under Sections 498-A, 323, 504, 506 of IPC, 3/4 DP Act and further set aside the consequential cognizance order dated 06.10.2023 passed in Criminal Case No. 33683 of 2023 titled State vs. Ankit Garg and others arising out of F.I.R./Case Crime No. 250 of 2022, Police Station Mahila Thana, Muzaffarnagar passed by the Court of Civil Judge (Junior Division) FTC-1 Muzaffarnagar, on the basis of compromise, are hereby quashed.

18. The application is, accordingly, allowed. There shall be no order as to costs.

19. With the consent of parties, the learned Registrar General, High Court of Judicature at Allahabad is directed to release the aforesaid amount in favour of opposite party no.2 and deposit the same in the savings bank of opposite party no.2 mentioned above.

Order Date :- 11.12.2024 Kalp Nath Singh